

NON-DISCLOSURE AGREEMENT

Flagrr Golf Loyalty Platform

Prospective Investors

This Non-Disclosure Agreement (the “**Agreement**”) is entered into on [EFFECTIVE DATE] (the “**Effective Date**”) between:

(1) [COMPANY LEGAL NAME], a [private company / close corporation] incorporated under the laws of the Republic of South Africa with registration number [REG NO], of [REGISTERED ADDRESS] (the “**Company**”); and

(2) [INVESTOR LEGAL NAME], a [company / partnership / trust / natural person] [incorporated under the laws of [JURISDICTION] with registration number [REG NO] / with identity number [ID NO]], of [ADDRESS] (the “**Recipient**”),

each a “**Party**” and together the “**Parties**”.

1. Background and Purpose

- 1.1 The Company owns and operates **Flagrr** (also written “Flaggr”), a golf loyalty platform under which members of participating golf clubs earn a loyalty currency (“Flagrr Cash”) by scanning till receipts and recording rounds played, and redeem that currency for rewards, together with its mobile and web applications, backend services, databases and related materials (the “**Business**”).
- 1.2 The Company is willing to disclose Confidential Information to the Recipient **solely so that the Recipient may evaluate a possible investment in, or financing of, the Company** (the “**Permitted Purpose**”), including conducting due diligence and considering, negotiating and documenting the terms of such an investment.
- 1.3 This Agreement governs how that information may be used and protected. Its purpose is to enable a candid diligence process, not to restrict the Recipient’s ordinary investment activities, which clause 6 expressly preserves.

2. Confidential Information

- 2.1 “**Confidential Information**” means all information relating to the Business or the Company, in any form and whether or not marked “confidential”, that is disclosed by or on behalf of the Company to the Recipient before or after the Effective Date, or that the Recipient observes, accesses, derives or generates in connection with the Permitted Purpose, including information made available through any data room, demonstration, management presentation or site visit.
- 2.2 Without limiting clause 2.1, Confidential Information expressly includes:
 - (a) **Fundraising information** — the fact that the Company is seeking or considering investment, the status and progress of that process, proposed and agreed terms, valuation, the capitalisation table, shareholder and option arrangements, term sheets, and the identity of and terms discussed with any other actual or prospective investor;

- (b) **Financial information** — management accounts, financial statements, the financial model, budgets, forecasts, projections, cash position and runway, revenue and cost breakdowns, and unit economics;
- (c) **Commercial information** — business plans, product roadmap, go-to-market strategy, pricing and subscription terms, member and club acquisition metrics, retention and engagement data, and the identity of and commercial terms agreed with participating or prospective golf clubs, merchants, advertisers, suppliers and service providers;
- (d) **Programme economics** — Flagrr Cash earning and conversion rates (including any Flagrr-Cash-per-Rand rate), tier thresholds, earning multipliers, bonuses, voucher values, reward catalogues and the cost of funding the rewards programme;
- (e) **Technical materials** — source code, object code, repositories, architecture, API design, database schemas and migrations, infrastructure design, deployment arrangements and third-party service configurations;
- (f) **Proprietary logic** — the receipt-capture and optical character recognition pipeline, receipt parsing and merchant/product matching logic, duplicate-detection and image-fingerprinting methods, fraud-detection signals and thresholds, the points engine, and the streak, voucher and notification logic;
- (g) **Legal and corporate information** — constitutional documents, material contracts, intellectual property filings and ownership, regulatory and compliance position, disputes and contingent liabilities, and employee and contractor arrangements;
- (h) **Personal information** — any personal information of members, club staff, employees, contractors or other individuals disclosed to or accessible by the Recipient, including names, contact details, dates of birth, submitted receipts and receipt images, and transaction, spend and redemption history; and
- (i) **Derived materials** — any notes, analyses, memoranda, investment committee papers, summaries, extracts, models, copies or other materials prepared by the Recipient or its Representatives to the extent they contain, reflect or are derived from any of the above.

2.3 The existence and terms of this Agreement, the fact that discussions between the Parties are taking place, and their status and content, are themselves Confidential Information.

3. Exclusions

3.1 Confidential Information does not include information that the Recipient can show by contemporaneous written record:

- (a) is or becomes publicly available other than through a breach of this Agreement or of any other duty of confidence;
- (b) was lawfully in the Recipient's possession, without restriction as to its use or disclosure, before it was disclosed by the Company;
- (c) is lawfully received by the Recipient from a third party who is free to disclose it and is not under any obligation of confidence in respect of it; or

- (d) is independently developed by the Recipient or its Representatives without any use of or reference to the Confidential Information.
- 3.2 Information does not fall within clause 3.1 merely because it is embraced by more general information that does, or because it can be assembled from a combination of separate items each of which does.
- 3.3 Personal information as described in clause 2.2(h) never falls within clause 3.1 and remains subject to clause 11 in all circumstances.

4. Recipient's Obligations

- 4.1 The Recipient shall:
 - (a) keep the Confidential Information strictly confidential;
 - (b) use the Confidential Information solely for the Permitted Purpose and for no other purpose, and in particular not for its own commercial advantage or that of any third party, and not to compete with the Company;
 - (c) protect the Confidential Information using at least the same degree of care it applies to its own confidential information of a similar nature, and in no event less than a reasonable degree of care;
 - (d) not copy, reproduce, publish, distribute, store or transmit the Confidential Information except to the extent reasonably necessary for the Permitted Purpose;
 - (e) not reverse engineer, decompile, disassemble or otherwise attempt to derive the source code, structure or algorithms of any software or system forming part of the Business, other than as expressly authorised in writing by the Company; and
 - (f) notify the Company in writing without undue delay, and in any event within **[48] hours**, of becoming aware of any actual or suspected unauthorised use, disclosure, access, loss or compromise of any Confidential Information, and cooperate reasonably with the Company in investigating and mitigating it.
- 4.2 The Recipient shall not, without the Company's prior written consent, disclose to any third party that the Company is seeking or considering investment, the status of that process, or any terms under discussion.

5. Permitted Disclosure to Representatives

- 5.1 The Recipient may disclose Confidential Information only to those of its directors, officers, employees, fund managers, general partners, investment committee members, affiliates and professional advisers who strictly need to know it for the Permitted Purpose (each a **"Representative"**), and only after informing them of its confidential nature and ensuring they are bound by obligations of confidentiality no less protective than those in this Agreement, whether by this Agreement, by professional duty or by their terms of engagement.
- 5.2 The Recipient may disclose Confidential Information to a proposed **co-investor or syndicate partner** only with the Company's prior written consent, and only where that person has first

signed an agreement on substantially these terms in favour of the Company.

- 5.3 The Recipient may include Confidential Information in routine, confidential reporting to its own investors or limited partners **only** to the extent of the fact of, and high-level rationale for, an investment actually made, and not in respect of an evaluation that does not proceed.
- 5.4 The Recipient remains fully liable for any act or omission of its Representatives that would breach this Agreement if done by the Recipient.

6. Competing Investments and Portfolio Companies

- 6.1 Nothing in this Agreement restricts the Recipient or any of its affiliates or portfolio companies from evaluating, negotiating, making or holding any investment in, or providing services to, any business, **including a business that competes with the Business**, provided that the Recipient does not use or disclose the Confidential Information in doing so.
- 6.2 The Recipient is not obliged to restrict the ordinary activities of any of its personnel who have had access to Confidential Information, provided those persons comply with clause 4.
- 6.3 Clause 6.1 does not permit, and is not a defence to, any use or disclosure of Confidential Information in breach of clause 4, including the disclosure of Confidential Information to a competing business or its use in evaluating or supporting one.

7. Non-Circumvention

- 7.1 For the duration of this Agreement and for **[twelve (12)] months** after its termination, the Recipient shall not use the Confidential Information to approach, solicit or transact directly with any participating or prospective golf club, merchant, advertiser or supplier of the Company whose identity was first disclosed to the Recipient under this Agreement, for the purpose of establishing a competing arrangement or of circumventing the Company.

8. Compelled Disclosure

- 8.1 The Recipient may disclose Confidential Information to the extent required by law, by a court of competent jurisdiction or by a competent regulatory authority, provided that (to the extent legally permitted) it gives the Company prompt written notice so that the Company may seek protective relief, discloses only the minimum required, and uses reasonable efforts to obtain confidential treatment for what is disclosed.

9. Intellectual Property and No Licence

- 9.1 All right, title and interest in and to the Business and the Confidential Information, including all intellectual property rights, vests in and remains with the Company.
- 9.2 Nothing in this Agreement transfers, assigns or grants to the Recipient any right, title, interest or licence in or to the Confidential Information or any intellectual property, save the limited right to use it for the Permitted Purpose for the duration of this Agreement.

10. No Offer, No Reliance and No Warranty

- 10.1 Confidential Information is provided **“as is”** and for evaluation only. The Company gives no representation or warranty, express or implied, as to its accuracy or completeness, and shall have no liability to the Recipient arising from the Recipient’s reliance on it, save in the case of fraud.
- 10.2 The Confidential Information does not constitute an offer to sell or issue, or a solicitation of an offer to subscribe for or buy, any shares or other securities in the Company, is not a prospectus or an offer to the public as contemplated in the Companies Act 71 of 2008, and is not investment advice or a recommendation.
- 10.3 Any forecast, projection, budget or forward-looking statement forming part of the Confidential Information reflects assumptions that are inherently uncertain and may prove incorrect. The Recipient acknowledges that it does not rely on any such statement, and that only those representations and warranties expressly set out in a signed definitive investment agreement (if any) will have contractual effect.

11. Personal Information and POPIA

- 11.1 The Parties acknowledge that Confidential Information may include **personal information** as defined in the Protection of Personal Information Act 4 of 2013 (**“POPIA”**), and that the Company is the responsible party in respect of it.
- 11.2 The Parties shall conduct due diligence using **aggregated or anonymised** data wherever it is reasonably capable of serving the Permitted Purpose. The Company shall not disclose, and the Recipient shall not request, personal information beyond what the Permitted Purpose genuinely requires.
- 11.3 Where the Recipient does receive or access personal information, it shall:
 - (a) process it only for the Permitted Purpose, and never for its own purposes, for marketing, for training any machine learning model, or for any form of profiling, enrichment or resale;
 - (b) secure its integrity and confidentiality by taking appropriate, reasonable technical and organisational measures as contemplated in section 19 of POPIA, including access control, encryption in transit and at rest where reasonably practicable, and the prompt revocation of access when no longer needed;
 - (c) not transfer it outside the Republic of South Africa without the Company’s prior written consent and compliance with section 72 of POPIA;
 - (d) notify the Company immediately, and in any event within **[24] hours**, where there are reasonable grounds to believe that it has been accessed or acquired by any unauthorised person, and provide all information the Company reasonably requires to make any notification under section 22 of POPIA; and
 - (e) on termination, deal with it in accordance with clause 13.
- 11.4 The Recipient shall not de-anonymise, re-identify or attempt to re-identify any aggregated or anonymised data derived from the Business.

12. Term and Survival

- 12.1 This Agreement commences on the Effective Date and continues until terminated by either Party on **[30] days'** written notice.
- 12.2 The Recipient's obligations in respect of Confidential Information disclosed before termination survive and continue for **[three (3)] years** from the date of termination, except that:
- (a) obligations in respect of anything constituting a trade secret continue for as long as it remains a trade secret; and
 - (b) obligations in respect of personal information and clause 11 continue indefinitely.
- 12.3 If the Recipient makes an investment in the Company, this Agreement is superseded in respect of Confidential Information by the confidentiality provisions of the definitive investment or shareholders' agreement from the date that agreement takes effect, and continues to apply to the extent that agreement does not.

13. Return and Destruction

- 13.1 On the earlier of the Company's written request or termination of this Agreement without an investment having been made, the Recipient shall promptly, and in any event within **[10] business days**:
- (a) cease all use of the Confidential Information;
 - (b) return or, at the Company's election, securely and irretrievably destroy all Confidential Information in its possession or control, including all copies and derived materials, and relinquish all data room and system access; and
 - (c) if requested, confirm in writing signed by an authorised representative that it has done so.
- 13.2 The Recipient may retain one copy of Confidential Information to the extent required by law, by any regulator, or by its bona fide internal document-retention, audit or automated backup policies, provided such retained material remains subject to this Agreement for as long as it is retained and is not accessed for any other purpose.

14. No Obligation to Proceed

- 14.1 This Agreement does not oblige either Party to disclose any particular information, to enter into any further agreement or transaction, or to continue discussions, and either Party may terminate discussions at any time without liability.
- 14.2 This Agreement grants no exclusivity and creates no partnership, joint venture, employment, agency or fiduciary relationship between the Parties. The Company remains free to negotiate with any other prospective investor.

15. Breach and Remedies

- 15.1 The Recipient acknowledges that a breach of this Agreement may cause the Company harm that cannot be adequately compensated by damages alone, and that the Company is accordingly

entitled to seek urgent interdictory relief and specific performance, in addition to any other remedy available in law, without having to prove actual damage and without the need to furnish security.

- 15.2 No failure or delay by a Party in enforcing any right under this Agreement constitutes a waiver of that right.

16. Notices

- 16.1 Notices under this Agreement must be in writing and delivered by hand, by prepaid registered post or by email to the addresses below (or such other address as a Party notifies in writing):

	Company	Recipient
Physical address	[ADDRESS]	[ADDRESS]
Email	[EMAIL]	[EMAIL]
For the attention of	[NAME]	[NAME]

- 16.2 A notice is deemed received: on delivery, if delivered by hand; on the seventh business day after posting, if posted; and on the first business day after sending, if sent by email and no delivery-failure message is received.

17. General

- 17.1 **Entire agreement.** This Agreement is the entire agreement between the Parties on its subject matter and supersedes all prior discussions, representations and understandings on it.
- 17.2 **Variation.** No amendment, cancellation or waiver of this Agreement is valid unless in writing and signed by both Parties. No indulgence granted by a Party is a waiver of any of its rights.
- 17.3 **Severability.** If any provision is found to be invalid or unenforceable, it is severed and the remaining provisions continue in full force.
- 17.4 **Cession and assignment.** The Recipient may not cede, assign, delegate or otherwise transfer any of its rights or obligations under this Agreement without the Company's prior written consent, save that it may cede its rights to an affiliated fund under common management that agrees in writing to be bound by this Agreement. The Company may cede and assign this Agreement to a successor in title to the Business on written notice.
- 17.5 **Counterparts and electronic signature.** This Agreement may be signed in counterparts, each of which is an original and all of which together constitute one agreement. The Parties agree that signature by electronic means constitutes a valid signature and that this Agreement may be concluded in electronic form as contemplated in the Electronic Communications and Transactions Act 25 of 2002.
- 17.6 **Governing law and jurisdiction.** This Agreement is governed by and construed in accordance with the laws of the Republic of South Africa. The Parties consent to the exclusive jurisdiction of the **High Court of South Africa, [Western Cape Division, Cape Town]** in respect of any dispute arising out of or in connection with it.

Signatures

Signed for and on behalf of the **Company**:

Signature	
Name	[NAME]
Capacity	[CAPACITY — duly authorised]
Date	[DATE]
Place	[PLACE]

Signed for and on behalf of the **Recipient**:

Signature	
Name	[NAME]
Capacity	[CAPACITY — duly authorised]
Date	[DATE]
Place	[PLACE]